United States Postal Service
And The
American Postal Workers Union, AFL-CIO

MOU *Re: Residual Vacancies – Clerk Craft*
Clerk Craft Questions & Answers

The parties have jointly agreed to the following Questions & Answers (Q&As) as clarification and guidance on issues related to the MOU *Re: Residual Vacancies - Clerk Craft*. These Q&As are not intended to alter or change in any way the terms of the 2021 National Agreement or subject MOU. This Q&A replaces the previous Q&A signed by the parties on 4/8/20 MOU *Re: Residual Vacancies – Clerk Craft*. In the 4/8/20 Q&As, the parties agreed to reset the 1 in for and 1 in 6 transfer ratios effective June 1, 2020, which was carried over for application of the MOU Re: Residual Vacancies – Clerk Craft in the 2021-2024 National Agreement. Further, the ratio will be applied on a continuous basis.

1. In offices of more than 100 workyears, a ratio of 1 transfer for every 4 vacancies (1 in 4), and in offices of less than 100 workyears, a ratio of 1 transfer for every 6 vacancies (1 in 6), applies for the duration of the of the MOU. What is the duration of the 1 in 4 and 1 in 6 ratios for application of the MOU *Re: Transfers*?

Answer: The 1 in 4 and 1 in 6 rations will be applied on a continuous basis until the parties mutually agree to terminate or modify it for successive periods.

2. When an eligible employee applies for a transfer from one Postal installation to another in regular eReassign, are they bidding on a particular posted residual vacancy?

Answer: No. An employee applying in regular eReassign is requesting a reassignment (transfer) from one installation (bid cluster) to another installation (bid cluster). The residual vacancies are posted per the language of the MOU *Re: Residual Vacancies - Clerk Craft*, Paragraph C. Employees should be assigned to vacancies based on the posting and the employee's availability at the time of the approved/accepted reassignment.

3. How often does an employee need to apply in eReassign?

Answer: In regular eReassign an employee is applying for a transfer to another installation (bid cluster), not a specific duty assignment. This application is active for 12 months from date of submission or until reached for review. The employee can withdraw the application at any time in that 12-month period. When the employee is placed in review, a decision is made to accept or deny the request for transfer. If the employee's transfer request is accepted and he/she reports to the new installation (bid cluster), all active transfer requests for other installations are closed. If the transfer request is denied, the application to the installation (bid cluster) is closed. Applicants can extend their requests prior to the 12-month expiration in accordance with the instructions on the confirmation screen in eReassign.

4. What makes an employee eligible for reassignment?

Answer: All career employees are eligible for reassignment if they have met the 12/18-month requirement in their current installation as defined in the MOU *Re: Transfers*. For

transfers within the geographical area covered by a District, or to any adjacent District, an employee must have 18 months of career service in his/her present installation prior to requesting reassignment to another installation. For transfers outside the geographical area as described above, the employee must have 12 months of career service in his/her present installation prior to requesting reassignment to another installation. (Refer to MOU *Re: Transfers*, page 307 - 311 of the 2018-2021 Collective Bargaining Agreement).

5. What happens if an employee applies prior to becoming eligible?

Answer: Each USPS District eReassign Coordinator is required to monitor the applications in regular eReassign. If a career employee submits an application for transfer prior to meeting the 12/18-month eligibility requirement, the employee will be notified in writing of his/her eligibility date. If the employee is still interested in a transfer, he/she will need to submit another application once eligible. The ineligible application will be removed from the pending list of applicants.

6. Does the transfer opportunity ratio 1 in 4 or 1 in 6 include both full-time residual vacancies and part-time flexible (PTF) vacancies?

Answer: Yes. The limit on the number of career reassignments (1 in 4 or 1 in 6) includes the combined opportunities of full-time residual vacancies and PTF vacancies.

7. How is the transfer opportunity ratio applied in offices of 100 or more work years?

Answer: For offices of 100 or more workyears, a ratio of 1 transfer for every 4 vacancies applies. At least 3 of the posted full-time residuals and PTF vacancies will be filled by conversion of Postal Support Employees (PSEs) based on their relative standing, maintaining a ratio of 1 transfer to 3 conversions. Calculations will be tracked to specific blocks of 4. For the first full-time opportunity in each block of four, if the relative standing date of the PSE within the installation (bid cluster) is older than the date of the request for a transfer to the installation, the PSE will be converted. The process will be continuous, in blocks of 4. When an employee is being considered for transfer, if the employee/employer rejects the offer/request, the first vacancy will be filled by the review process as stated as stated in the MOU *Re: Transfers*. If an employee is being considered for transfer into one of the remaining vacancies in the block of four, PSE conversion will take place only after exhausting all eligible employees pending in eReassign. To be eligible, the applicant must submit an application for transfer prior to the close of that month's posting. If the final result is a PSE conversion, the transfer opportunity in the specific block of four cannot be made-up at a later date.

8. How is the transfer opportunity ratio applied in offices of less than 100 workyears?

Answer: For offices of less than 100 workyears, a ratio of 1 transfer for every 6 vacancies will be applied for the duration of the MOU *Re: Residual Vacancies – Clerk Craft*. At least 5 of the career (FTR & PTF) vacancies will be filled by conversion of PSEs to career status based on their relative standing. Once a transfer is accepted, the remaining vacancies of the 1 in 6 ratio will be filled by PSE conversion. Calculations will be tracked to specific blocks of 6. For the first full-time opportunity in each block of six, if the relative standing date of the PSE within the installation (bid cluster) is older than the

date of the request for a transfer to the installation, the PSE will be converted. The process will be continuous, in blocks of 6. When an employee is being considered for transfer, if the employee/employer rejects the offer/request, the first vacancy will be filled by the review process as stated in the MOU *Re: Transfers*. If an employee is being considered for transfer into one of the remaining vacancies in the block of six, PSE conversion will take place only after exhausting all eligible employees pending in eReassign. To be eligible, the applicant must submit an application for transfer prior to the close of that month's posting in eReassign. If the final result is a PSE conversion, the transfer opportunity in the specific block of six cannot be made-up at a later date.

9. Where in the pecking order are retreat rights to PTF vacancies handled?

Answer: Employees with Clerk Craft retreat rights would fill PTF vacancies in accordance with Article 12.5.C.5 or Article 12.5.C.5.b(6) prior to consideration of PSE conversions and transfers (MOU *Re: Transfers* - Step B.1). Retreat rights do not count towards the ratios of 1 in 4, or 1 in 6.

10. Where in the pecking order are transfers to PTF vacancies considered?

Answer: Transfer requests are considered in conjunction with PSE conversions per Item B.1 of the MOU *Re: Residual Vacancies - Clerk Craft*.

11. When there are two required qualifications on a residual vacancy, when does the employee enter the second deferment period? For example, a PSE is scheduled for conversion to a Sales, Services/Distribution Associate (SSDA) with scheme qualification, the PSE enters window training first and is converted upon qualification on the window. When does the newly converted employee enter the scheme deferment period?

Answer: The newly converted career clerk will enter scheme training within 10 days of conversion to career. The required scheme training will be conducted in accordance with Handbook M-5, *Schemes: Construction, Assignment, Training, and Proficiency*.

12. Which language is controlling for the term of the 2021-2024 National Agreement, the MOU *Re: Residual Vacancies - Clerk Craft* or Article 37.5.D?

Answer: The MOU *Re: Residual Vacancies - Clerk Craft* is the controlling document for the term of the 2021 National Agreement. The Article 37.5.D language was placed in the 2015-2018 National Agreement in anticipation of the MOU Re: Residual Vacancies - Clerk Craft expiring.

13. Who will be canvassed in Paragraph 7 of the MOU *Re: Residual Vacancies – Clerk Craft*, to fill full-time residual vacancies?

Answer: Both Clerk Craft PTFs and PSEs will be canvassed within a 50-mile geographic radius. All Clerk Craft PTF applicants, by installation seniority order, will be processed ahead of PSE applicants. In the event there are no PTF applicants, the PSE with the highest installation standing within the 50 miles will be selected. Normal considerations contained in the MOU *Re: Transfers* will not apply. Selections as a result of the canvass do not count towards the 1 in 4 or 1 in 6 ratio.

14. Who will be canvassed in Paragraph B.2 of the MOU *Re: Residual Vacancies – Clerk Craft*, to fill PTF vacancies?

Answer: Both Clerk Craft PTFs and PSEs will be canvassed within a 50-mile geographic radius. All Clerk Craft PTF applicant(s), by installation seniority order, will be processed ahead of PSE applicant(s). In the event there are no PTF applicants, the PSE with the highest installation standing within the 50 miles will be selected. Normal considerations contained in the MOU *Re: Transfers* will not apply. Selections as a result of the canvass do not count towards the 1 in 4 or 1 in 6 ratio.

15. What is the seniority date for applicants accepted from a canvass?

Answer: The seniority is established as the effective date of placement into the new installation (bid cluster).

16. Is there a limit on the number of times an employee can be accepted for a transfer as a result of a canvass?

Answer: An employee placed through a successful canvass, must remain in the new bid cluster for a period of 12 months from the date of placement.

17. In Q&As #7 and #8 above, the parties have agreed to a review process for filling the first residual vacancy in each block of 4 or 6 residuals, as applicable. How will that work? What is an example?

Answer: For the first residual vacancy in the block of 4 or 6, as applicable, for the first full-time opportunity in each block of 4 or 6, if the relative standing date of the PSE within the installation (bid cluster) is older than the date of the request for a transfer to the installation, the PSE will be converted. The process will be continuous, in blocks of 4 and 6. For example, if the first applicant in eReassign made the transfer request prior to a PSE's relative standing date within the installation (bid cluster), the eReassign applicant will be provided the opportunity for the transfer based on approval by the employer and acceptance by the applicant. Should the applicant's request be denied or the applicant withdraws from the transfer opportunity, management will again consider the relative standing date of the PSE versus the date of transfer request from the next eligible applicant in eReassign. If the relative standing date of the PSE within the installation (bid cluster) is older than the date of the next eligible applicant in eReassign, the PSE will be converted. This review will be applied only for the first residual vacancy in each block of 4 or 6. Once the first vacancy has been filled, the remainder of the vacancies will be filled by either transfer or PSE conversion as applicable to meet the ratio of 4 or 6 for that block. Any disputes over this review process will be sent to the Alternative Dispute Resolution Process (ADRP) at the Headquarters level.

18. How does an employee within an installation apply for a cross-craft reassignment into the Clerk Craft?

Answer: The employee must provide the installation head with a written request to reassign into the Clerk Craft. The employee and the installation head should:

- Mark the request as received
- Provide the date of application

- Submit the dated request to the District to be considered in the pending list of eligible applicants in eReassign.

The requests are considered in the order received. This would be in compliance with Step 6(b) of the MOU *Re: Residual Vacancies – Clerk Craft.*

19. Can management consider the work, attendance, and safety records of the applicants from within the installation for cross-craft reassignments?

Answer: Yes.

20. What is the term of a request for reassignment across craft lines within the installation into the Clerk Craft?

Answer: The request will be considered in accordance with the MOU *Re: Residual Vacancies – Clerk Craft*, Step 6(b), and the term for the request is 12 months. If there is still a desire to change crafts after 12 months, the request must be resubmitted/ extended.

21. The PTF Clerks that are transferring per the MOU *Re: Part-Time Flexible (PTF) One-Time Voluntary Reassignment Opportunity*, will those transfers count against the ratios for the gaining installations per the MOU *Re: Residual Vacancies – Clerk Craft*?

Answer: Those transfers will not count against the 1 in 4 or 1 in 6 ratio as stated in the MOU *Re: Residual Vacancies – Clerk Craft.* This one-time opportunity was negotiated outside of the parameters of the MOU *Re: Residual Vacancies – Clerk Craft.* Should any residual vacancies remain from the March 2022 regular eReassign posting after completion of the PTF one-time opportunity reassignments, the language and ratio of the MOU *Re: Residual Vacancies – Clerk Craft* resume.

22. Is there a deadline for withdrawing from a canvass?

Answer: If the successful transfer applicant for a 50-mile canvass wishes to withdraw the transfer request, the withdrawal must be submitted with a dated and time stamped withdrawal request to the District and Installation Head no later than 5 full business days prior to the effective reassignment date.

23. The parties previously had agreed upon language for the filling of Best Qualified (BQ) Clerk Craft residual vacancies. Will this language be carried forward in the 2021 National Agreement?

Answer: Yes, the parties agree that the previously agreed upon language on the filling of Best Qualified (BQ) residual vacancies will be applied for the duration of the MOU *Re: Residual Vacancies – Clerk Craft* and the 2021-2024 National Agreement.

24. When a PSE reaches the 24-month conversion requirement, what will the conversion date be?

Answer: The conversion date will be the first day of the third full pay period after the 24-month requirement is reached.

25. How will seniority on the career seniority list be determined when more than one PSE is converted on the same day in the same installation?

Answer: When PSEs are hired in an installation on the same day, their ranking on the relative standing list is based on their test score. When converted to career, the same ranking order will continue to apply to the career seniority list.

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